IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of the Section 331 of the Code of Criminal Procedure Act No. 15 of 1979

Hon. Attorney General,

Attorney General's Department,

Colombo 12

Complainant

CA HCC 0070/24

High Court of Nuwara Eliya

Case No. HCR 58/2019

Vs.

Muthukuruppan Vithyanathan,

Sambandan,

No.144,

Main Street,

Kotagala.

Accused

AND NOW BETWEEN

Muthukuruppan Vithyanathan,

Sambandan,

No.144,

Main Street,

Kotagala.

Accused-Appellant

Vs,

Hon. Attorney General,

Attorney General's Department,

Colombo 12

Complainant-Respondent

Before: **B. Sasi Mahendran. J,**

Amal Ranaraja. J,

Counsel: Saliya Pieris, PC with Himasha Fernando for the Accused-Appellant

Akila Dalpadatu, SC for the Respondent

Argued on: 29.01.2026

Judgment on: 26.02.2026

Judgment

Amal Ranaraja. J,

1. The Accused-Appellant (hereinafter referred to as the 'appellant') has been indicted in the High Court of Nuwara Eliya in High Court Case No. HC/NE/58/29. The charges in the indictment are as follows;

    i. Between 01st of July, 2012 and 30th June, 2013, in *Kotagala,* within the jurisdiction of this Court, you have used a certain part of your body on a certain part of the body of a person under sixteen years of age, namely, *Sivaraja Puvanya*, by placing your male genitalia against her female genitalia. Thereby, you have committed an offence punishable under Section 365B (2)(b) of the Penal Code as amended by Penal Code (Amendment) Act No.22 of 1995, Penal Code (Amendment) Act No.29 of 1998 and Penal Code (Amendment) Act No.16 of 2006.

    ii. Between 01st of July, 2012 and 30th June, 2013, in *Kotagala,* within the jurisdiction of this Court, at a time other than that of the first charge, you have used a certain part of your body on a certain part of the body of a person under sixteen years of age, namely, *Sivaraja Puvanya*, by placing your male genitalia against her female genitalia. Thereby, you have committed an offence punishable under Section 365B (2)(b) of the Penal Code as amended by Penal Code (Amendment) Act No.22 of 1995, Penal Code (Amendment) Act No.29 of 1998 and Penal Code (Amendment) Act No.16 of 2006.

    iii. Between 01st of July, 2012 and 30th June, 2013, in *Kotagala,* within the jurisdiction of this Court, at a time other than that of the first and second charges, you have used a certain part of your body on a certain part of the body of a person under sixteen years of age, namely, *Sivaraja Puvanya*, by placing your male genitalia against her female genitalia. Thereby,

you have committed an offence punishable under Section 365B (2)(b) of the Penal Code as amended by Penal Code (Amendment) Act No.22 of 1995, Penal Code (Amendment) Act No.29 of 1998 and Penal Code (Amendment) Act No.16 of 2006.

2. At the conclusion of the trial, the learned High Court Judge has convicted the appellant of the second and third charges and acquitted him of the first charge. Thereafter, the learned High Court Judge has sentenced the appellant as follows;

i. Seventeen years rigorous imprisonment each in respect of the second and third charges, further, has imposed a fine of Rs. 25,000/- each with terms of 6 months rigorous imprisonment each in default. The appellant has also been directed to pay to PW01 a sum of Rs. 500,000/- each as a compensation in respect of the second and third charges with terms of 3 years rigorous imprisonment each, in default.

3. The appellant aggrieved by the conviction, the disputed judgment and the sentencing order has preferred the instant appeal to this Court.

Case of the Prosecution

4. PW01 has been born on June 3rd, 1998. At the time relevant to the alleged incidents, she has resided with her grandmother and uncle at *No. 114 Rosita Housing Complex, Kotagala*. During this period, PW01 has been enrolled as a Grade 9 student at *Kotagala Tamil Maha Vidyalaya* where the appellant has served as Science teacher.

5. Regarding the allegations central to the indictment, it is claimed that, on an unspecified date in June 2012 the appellant has allegedly lured PW01 into the school's first-aid room. While in the room, the appellant is said to have attempted to hug PW01. However, PW01 has resisted his attempt and has immediately left the room.

6. Furthermore, it is alleged that the appellant on two separate occasions in July and August 2012, has lured PW01 to his residence. He has then allegedly committed acts of sexual abuse against PW01 by positioning his penis on her vagina and subsequently pressing it against the same.

Case of the Appellant

7. The appellant has unequivocally denied the allegations levelled against him.

8. Regarding the first allegation, the appellant has asserted that at approximately 14.30 hours on the day in question, the school premises would have been highly populated by both students and teachers. Consequently, any improper behaviour occurring within the school's first-aid room at that time would have been readily observed and thus impossible to conceal.

9. Concerning the second and third allegations, the appellant has maintained that his residence is situated adjacent to an educational institute. That this proximity ensures that the surrounding neighbourhood is consistently crowded. As a result, any inappropriate interaction between the Appellant and PW01 would have been visible to students or other passers-by from the institution making such conduct highly improbable without detection.

10. Furthermore, the appellant has provided an alibi, specifically stating that he was away on vacation in August 2012. This renders impossible any alleged inappropriate behaviour referred to in the third incident.

11. The Grounds of appeal are as follows;

    i. Has the learned High Court Judge considered the delay of the complainant?
    ii. Whether PW10 corroborated the evidence of PW01 in his statement?
    iii. Is the narrative of PW01 highly improbable?
    iv. Has the learned High Court Judge fairly evaluated the omissions and contradictions in the evidence of the prosecution?
    v. Has the learned High Court Judge fairly analysed the dock statement of the accused?

12. The appellant has raised no dispute regarding PW1's date of birth. The absence of dispute has been duly recorded as an admission. Consequently, it has been accepted that PW01 was under the age of sixteen at the time of the alleged incidents.

13. The prosecution alleges that in November 2012 also the appellant attempted to commit grave sexual abuse of PW01 at PW01's residence. The narrative details how in the morning of the incident PW02, the uncle of PW01, had anticipated the potential incident. He has therefore, strategically lay in wait and successfully detained the appellant precisely as he was on the verge of perpetrating the alleged offence on PW01.

14. Following this detention, the appellant has reportedly confessed to committing grave sexual abuse on PW01. Crucially he has also provided a written undertaking acknowledging his wrongdoing and promising to refrain from similar acts in the future. Such written undertaking has been produced as evidence marked *පැ 02*. The translation of such undertaking is as follows;

Further, the appellant has not disputed the document පැ 2 or its contents in the high court.

15. Subsequently, the parties concerned specifically PW01's grandmother and uncle have agreed not to pursue the matter. Despite the decision by PW01's grandmother and uncle, to not pursue the matter, PW01's father who was abroad when he was notified of the arrangement with the appellant has insisted that a formal police complaint be lodged. He has believed that the appellant would commit similar offences against other students if not held accountable. Consequently, a complaint has been filed prompting the police to commence an investigation. During this process PW01 has also been referred for a medical examination.

16. PW01 has been examined by Dr. A.B.M. Faizal, Medicolegal Officer, District General Hospital Nawalapitiya on December 6th 2013

beginning 11.30 hours. Prior to being examined the doctor has proceeded to record the short history given by the patient, i.e. PW01. Such history is follows;

[redacted]

17. The complainant (PW01) has consistently maintained that the appellant subjected her to sexual abuse. This account has remained consistent notably in a short history provided to the attending medicolegal officer. Thereby, demonstrating the unwavering nature of her testimony. Further, bolstering PW01's credibility her narrative is directly corroborated by the appellant's own undertaking marked *පැ* 2. This document serves as significant evidence supporting the truthfulness of her allegations.

18. Regarding the initial response to the incidents, it is crucial to understand the circumstances that have led to the delay in filing a police complaint/making a statement. Initially, PW01's guardian at that time has chosen not to pursue formal charges with the police. This decision has been based upon an undertaking provided by the appellant as evidenced by *පැ 2,* which presumably offered assurance that led the guardian to believe that the matter would be addressed without immediate police intervention. This initial arrangement has precluded the parties involved from lodging a complaint at that juncture. However, this informal resolution has proved to be temporary, a police complaint has been subsequently made driven by the insistence of PW01's father. This sequence of events clearly explains the reasons for the delay in promptly reporting the incidents to the police and also in PW01 making a statement with regard to incidents mentioned in the charges. It has been only when the informal arrangement was proved insufficient or upon reconsideration of the gravity of the acts particularly at the urging of PW01's father that the formal complaint had been finally lodged.

19. In the case of ***Ajith Samarakoon Vs The Republic 2004 2 SLR 220***, Jayasuriya J has stated,

> *"Just because the statement of a witness is belated the Court is not entitled to reject such testimony. In applying the Test of Spontaneity the Test of Contemporaenity and the Test of Promptness the Court ought to scrupulously proceed to examine the reasons for the delay. If the reasons for the delay adduced by the witness are justifiable and probable the trial Judge is entitled to act on the evidence of a witness who had made a belated statement."*

20. PW02's narrative centers on his deliberate plan, formulated from an anticipatory incident between PW01 and the appellant to strategically lie in wait and apprehend the appellant while the latter was allegedly committing grave sexual abuse against PW01.

21. The appellant's counsel has drawn the Court's attention to several inconsistencies observed between PW01's and PW02's narratives regarding the alleged incident narrated by PW02 and argued that those discrepancies are significant thereby rendering PW01's account unreliable.

22. PW02's narrative does not exactly refer to the incidents set out in the charges instead, it directly refers only to an instance in which the appellant made a confession and subsequently undertook to refrain from committing any further acts of sexual abuse. In such circumstances a discrepancy referred to do not go the core of the prosecution's case. Hence those discrepancies are not material.

23. In the case of ***Bandara Vs. The State (2001) 2 SLR 63,*** Kulathilake J, has stated,

> *"Our courts have laid down the principle that the discrepancies and inconsistencies which do not relate to the core of the prosecution case ought to be disregarded especially when all probabilities factor echoes in favour of the version narrated by a witness."*

24. Further, the written undertaking given by the appellant has been produced as evidence marked *පැ 02*. As stated before, the appellant has not disputed the authenticity or the contents of this document.

Consequently, this significantly, strengthens the probability of an incident occurring as narrated by PW02.

25. PW01 has provided a statement to the police and thereafter a short account of the incident involving the appellant to the Consultant Judicial Medical Officer, approximately over a year after the alleged incidents. PW01's evidence in court has been delivered a significant 8 years after the incidents occurred. These considerable time lapses are crucial. Human memory unlike a perfect recording device is reconstructive. As such recalling the past involves using current beliefs knowledge and expectations to fill in gaps often leading to distortions, errors and occasionally false memories. Over such extended periods it is entirely natural and indeed expected that specific details sequences or precise wording may fade or become less vivid.

26. Consequently, any minor discrepancies or inconsistencies in a narrative are not indicative or fabrication or an intent to mislead. Instead, they are entirely consistent with the known fallibility of human recall overtime and should be understood as natural cognitive occurrences rather than factors undermining credibility. Such factors are also relevant to the narrative of PW01. Therefore, the contention that the narrative of PW01 is not reliable as elaborated on behalf of the appellant must fail.

    It is imperative to note that while the medical opinion of PW10 does not offer direct corroboration for PW01's narrative, the finding that "inter-crural or inter-labial penetration cannot be excluded" signifies that the medical evidence is not contrary to PW01's account. Consequently, the absence of affirmative corroboration cannot be construed as a basis for discrediting PW01's narrative.

27. Further, the learned High Court Judge after examining the evidence and arguments of both parties in their entirety has concluded that the appellant's version of events was not merely doubtful but objectively improbable. He has accepted the prosecution's narrative as the truthful reconstruction of events thereby, disregarded the appellant's narrative.

28. In those circumstances, I am not inclined to interfere with the conviction, disputed judgment or the sentencing order and proceed to affirm the same

29. I dismiss the appeal

I make no order regarding costs.

Appeal is dismissed

30. The Registrar of this Court is directed to send a copy of this judgement to the High Court of Nuwara Eliya together with the original case record for compliance.

Judge of the Court of Appeal

B. Sasi Mahendran. J.

Judge of the Court of Appeal